

**THE PUNJAB RICE (RESTRICTIONS ON CULTIVATION)
ORDINANCE, 1959**

(LVIII of 1959)

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TEXT

**¹THE ²[PUNJAB] RICE (RESTRICTIONS ON CULTIVATION) ORDINANCE,
1959**

(LVIII of 1959)

[17 December, 1959]

An
Ordinance

to regulate the cultivation of rice in the Province of ³[the Punjab].

Preamble.— WHEREAS in order to check the increase of water-logging, salinity, seepage and the resultant damage to land in the Province of ⁴[the Punjab], it is expedient to regulate the cultivation of rice in the Province in the manner hereinafter appearing;

NOW, THEREFORE, in pursuance of the Presidential Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the Governor of West Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the ⁵[Punjab] Rice (Restrictions on Cultivation) Ordinance, 1959.

⁶[(2) It extends to the whole of the Province of ⁷[the Punjab], except the Tribal Areas.]

⁸[(3) * * * * *]

2. Definitions.— In this Ordinance—

(i) “Board of Revenue” means the ⁹[Board of Revenue, Punjab],

¹This Ordinance was promulgated by the Governor of West Pakistan on December 16, 1959, published in the Gazette of West Pakistan (Extraordinary), dated December 17, 1959, pp. 1895-1896; saved and given permanent effect by Article 225 of the Constitution of the Islamic Republic of Pakistan (1962).

²Substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (1 of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 31.

³*Ibid.*

⁴*Ibid.*

⁵*Ibid.*

⁶Substituted by the West Pakistan Laws (Extension to Karachi) Ordinance, 1964 (VII of 1964), published in the Gazette of West Pakistan (Extraordinary), dated May 25, 1964, pp. 1679-1688, s. 2 read with Schedule, Serial No. 31.

⁷Substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (1 of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Serial No. 31.

⁸Omitted by the West Pakistan Rice (Restrictions on Cultivation) (Amendment) Ordinance, 1969 (X of 1969), published in the Gazette of West Pakistan (Extraordinary), dated July 10, 1969, pp. 1107-1108, s. 2.

⁹Substituted for the words “Board of Revenue, West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (1 of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 31.

as established under the ¹[Punjab] Board of Revenue Act, 1957;

(ii) “Government” means the ²[Provincial Government of the Punjab].

3. Powers to regulate cultivation of rice.— ³[(1)] The Board of Revenue may, by notification, prohibit or impose such restrictions on the cultivation of rice in such area as may be specified in the notification:

Provided that a cultivator shall be entitled to gather the standing crop raised by him before the issue of such notification.

⁴[(2)] The Board of Revenue or any Officer authorised by it in this behalf may, in the interest of operations for reclamation of land, relax, in respect of any specified area, estate or holding, the prohibition or all or any of the restrictions imposed on cultivation of rice under sub-section (1), for a period not exceeding three years.

Explanation.— For the purposes of this section the expressions “estate” and “holding” shall have the meaning respectively assigned to them in the ⁵[Punjab] Land Revenue Act, 1967.]

4. Penalty.— Whoever contravenes the provisions of this Ordinance or the rules made or directions issued thereunder shall, on a complaint made in writing by any Revenue Officer, be punished with fine which may extend to ten times the land revenue assessment chargeable for the crop or simple imprisonment not exceeding six months or both.

5. Jurisdiction of civil court.— No civil court shall have jurisdiction to entertain any claim, suit, prosecution or any other legal proceedings for anything done, or intended to be done in good faith under the provisions of this Ordinance, or the rules made and directions issued thereunder.

6. Power to make rules.— For the purposes of carrying into effect the provisions of this Ordinance, the Board of Revenue may frame rules and issue such directions in the form of Standing Orders as it may deem fit.

¹Now it is “the Punjab Board of Revenue Act, 1957” as the word “Punjab” substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (1 of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 31.

²Substituted for the words “Government of West Pakistan” by the Order *ibid*.

³Re-numbered by the West Pakistan Rice (Restrictions on Cultivation) (Amendment) Ordinance, 1969 (X of 1969), published in the Gazette of West Pakistan (Extraordinary), dated July 10, 1969, pp. 1107-1108, s. 3.

⁴Added by the Ordinance *ibid*.

⁵Now it is “the Punjab Land Revenue Act, 1967” as the word “Punjab” substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (1 of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 90.